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U.S. Department of State Diplomacy in Action

Comoros

Country Reports on Human Rights Practices
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The Federal Islamic Republic of the Comoros is ruled by Colonel Azali Assoumani, who took power in a coup in April 1999. The country consists of three islands (Grande Comore, Anjouan, and Moheli) and claims a fourth, Mayotte, which is governed by France. Comoros has been prone to coups and political insurrection since independence in 1975. In April 1999, army commander Colonel Azali staged a bloodless coup and overthrew President Tadjiddine Ben Said Massoude, the Interim President who had held office since the death of democratically elected President Mohamed Taki Abdoukarim in November 1998. In December 1999, in response to international criticism, Azali appointed a civilian prime minister, Bianrifi Tarmidi; however, Azali remains the Head of State and army Commander in Chief. When he took power, Azali said that he would step down on April 14 and relinquish power to a democratically elected president, but by year's end, he had not done so. In May 1999, Azali decreed a Constitution that gave him both executive and legislative powers. In August Azali organized a national congress in response to pressure from his political supporters to restore civilian rule. Opposition parties boycotted the National Congress, but pro-Azali parties participated. The Congress agreed on a new constitution in which Azali would remain Head of State, but daily government administration would be handled by the civilian Prime Minister and the Council of State, which would act as both a legislature and constituent assembly. In November a Tripartite Commission, composed of representatives from Grande Comore, Moheli and Anjouan, was inaugurated and charged with developing a new constitution based on the Fomboni Declaration--an agreement between the Government and Anjouan--and the constitution that was articulated by the National Congress in August. In December Azali named a new civilian Prime Minister, Hamada Madi, and formed a new civilian Cabinet. The opposition parties initially refused to participate in the Tripartite Commission, but in December met with the Azali Government. At year's end, the Organization for African Unity (OAU) was mediating negotiations between the Government and the opposition on the provisions of the new constitution and a timetable for elections in 2001; however, it remained unclear whether the representatives from Anjouan would participate in or accept any agreement resulting from the negotiations. Although the OAU initially had maintained the position that the Antananarivo Accord was the only viable option to reunify the islands, in December the OAU stated its intention to accept an agreement that maintained the territorial integrity the country and that provided for a democratic constitutional government. The August constitution provided for the continuation of an independent judiciary; however, it was not implemented by year's end. In the past, both the executive and other elites influenced the outcome of cases, and the executive intervened in at least two cases during the year.

The Anjouan secession crisis subsided after the August 26 signing of the "Fomboni Declaration of National Unity" by Azali and separatist leader Lieutenant Colonel Said Abeid. The Fomboni Declaration provides for a loose confederation between the islands, giving each island the ability to maintain an army and conduct its own foreign relations. On Anjouan the signing

of the Fomboni Declaration resulted in 4 days of violent clashes between opponents and supporters of Abeid's separatist faction.

The Comorian Defense Force (FCD), and the gendarmerie are responsible for internal security and are under Azali's direct control. Security forces committed some human rights abuses.

The economy of this extremely poor country is dominated by agriculture. Revenues from the main crops--vanilla, essence of ylang-ylang, and cloves--continued to fall while the population of 547,600 has been growing at a rate of 2.7 percent annually. Per capita income was approximately \$400 per year in 1997--the national accounts have not been updated since 1998. The country depends heavily on foreign assistance from the European Union and Arab countries, including Bahrain, Kuwait, Qatar, Saudi Arabia, and the United Arab Emirates.

The Government's human rights situation remained poor, and it continued to commit abuses. Citizens do not have the right to change their government. Security forces reportedly continued to threaten Christians. Separatist authorities on Anjouan tortured, beat, and raped opponents of the separatist Government. Prison conditions remain poor. Security forces and the separatist authorities on Anjouan used arbitrary arrest and detention. In at least two instances, the executive intervened with the judiciary. Authorities restricted citizens' privacy rights. There were infringements on freedom of the press and assembly and movement. The military Government limits freedom of religion. Societal discrimination against women and Christians continued to be serious problems. There were some instances of forced child labor.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political or other extrajudicial killings by security forces on Grande Comore or Moheli.

Between May 11 and 13, 1998, police clashed with protestors on Grand Comore over the May 6, 1998, government closure of the opposition party's Radio Tropique. Police seriously injured several persons, but the only death reportedly was due to a traffic accident caused by the fighting. By year's end, no police officers were held responsible for their actions during the protests.

In addition to the police and the military, there are many groups throughout Anjouan that are armed, including paramilitary forces, militias, and civilians. In 1999 battles between rival militias resulted in approximately 12 deaths; however, there were no such deaths reported during the year.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution does not prohibit torture or other cruel, inhuman, or degrading treatment or punishment specifically; however, while there were no reports of security force brutality, police reportedly continued to threaten Christians on Grande Comore (see Section 2.c.).

On October 13, police used tear gas to disburse forcibly demonstrators protesting against rising fuel prices and protestors who were marching to the OAU offices in Moroni (see Section 2.b.). Police reportedly also threw tear gas canisters into private homes (see Section 1.f.). Two policemen and several protestors reportedly were injured, and some protestors reportedly were arrested.

Separatist security forces tortured, beat, and otherwise abused persons on Anjouan. There were reports that separatist security forces on Anjouan intimidated, arrested, and beat persons during the referendum at the end of January (see Section 3). In August separatist authorities on Anjouan arrested approximately 100 opponents of the Fomboni Declaration, following demonstrations against the agreement (see Section 1.d.). There were unconfirmed reports that as many as 28 of those arrested, who primarily were members of the Comoros Red Crescent Society and the opposition party GIRMA (Group for the Recovery Initiative for the Anjouan Movement), were tortured, and, in one case, raped. By November the Government had freed all of those arrested; there were no reports of government action against those persons responsible for the abuses.

In April 1999, quasi-police authorities known as embargoes arrested, beat, and detained three local Christians; there was no further information on the incident at year's end. Prison conditions continued to be poor. A lack of proper sanitation, overcrowding, inadequate medical facilities, and poor diet are common problems. The military Government has not taken action to remedy these problems. Although there were reports of deaths as a result of disease in prisons in previous years, there were no reports of such deaths during the year. Female prisoners are held separately from male prisoners. Juveniles are not imprisoned; they are returned to the custody of their parents.

The military Government permits prison visits by independent monitors; however, no such visits occurred during the year.

d. Arbitrary Arrest, Detention, or Exile

The Constitution does not prohibit arbitrary arrest and detention specifically, and there were instances in which authorities arbitrarily arrested and detained citizens. The new constitution, approved in August, prohibits arbitrary arrest and detention; however, it was not implemented by year's end.

Two Azali opponents who reportedly led a coup attempt in March were detained in a military prison. In November one of the opponents escaped from prison; the other opponent remained in detention at year's end (see Section 3).

On August 15, authorities arrested four opposition politicians, including Cheik Ali Bacar Kassim, former Member of Parliament (M.P.) and owner of the opposition radio station Radio Tropique, for allegedly plotting to overthrow Colonel Azali. The four were detained in a military prison, despite a judge's order to transfer them to the civilian prison in the capital of Moroni. Cheik Ali reportedly was denied access to defense counsel until he launched a hunger strike in protest (see Section 1.e.).

After the August demonstrations against the Fomboni Declaration, separatist authorities on Anjouan arrested and beat numerous opposition supporters (see section 1.c.). At the end of September, 3 of the approximately 100 persons arrested were freed by a tribunal in Anjouan's capital, Mutsamudu. At the end of November, authorities reportedly freed Kassim on the condition that he leave the country; when he refused to leave, he reportedly was returned to prison. No trial date had been scheduled by year's end.

On Anjouan local authorities continued to attempt to suppress or convert the Christian minority.

On October 13, police arrested approximately 20 persons while dispersing a demonstration in Moroni; police broke into houses and one mosque to make arrests (see Section 1.c., 1.f., 2.b., and 2.c.). The protestors were released within 24 hours, and no charges were filed against them.

One Anjouanais Christian estimated that approximately 50 Christians, both men and women, were detained in Anjouan by embargoes during the past 18 months.

In September 1999, secessionist authorities on Anjouan exiled a group of opponents to Mayotte, then imprisoned several of the group's leaders when they were sent back to Anjouan by French authorities. The opponents were released from prison in early October, and no charges were filed against them.

The Constitution does not prohibit forced exile, but the military Government did not use it.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary; however, in the past, the executive and other elites have exercised influence over court cases, and the executive intervened in at least two cases during the year. The Head of State names magistrates by decree. In August despite regulations that prevent the removal of judges, Colonel Azali transferred to other duties nine judges who had initiated a strike calling for judicial reform and regular payment of salaries. In October Colonel Azali issued a presidential decree which reduced the number of Supreme Court justices from nine to five and transferred judges to other courts. Although the official reason for the action was a lack of resources, opposition critics accused Azali of punishing certain judges for questioning government policies and participating in a strike by judges and court personnel. In the case of detained opposition politician Cheik Ali Bacar Kassim and three others, the trial judge resigned in protest when authorities failed to obey his order to transfer the opposition leaders from a military prison to a civilian prison in Moroni. Authorities stated that the poor condition of the Moroni Prison prohibited the transfer.

The High Council, made up of four members appointed by the President, three members elected by the Federal Assembly, and a member of each island council, also serves as the High Court of the Republic and rules on cases of constitutional law. The August Constitution, which was not implemented during the year, provides for equality before the law of all citizens and provides for the right of accused to mount a defense. Trials are open to the public except for limited exceptions defined by law. The legal system incorporates Islamic law as well as French legal codes. After he was arrested in August (see Section 1.d.), opposition leader Cheik Ali was denied access to defense counsel for almost 1 month, but authorities allowed Cheik Ali's lawyer to visit him after he began a hunger strike. There are very few lawyers in the country, making it difficult to obtain legal representation. The military Government does not provide legal counsel to the accused. Most disputes are presented to village elders for possible resolution before being taken to court.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

There were no known cases of arbitrary interference with correspondence; however, police interfered with the privacy of the home. On October 13, during protests in Moroni, police reportedly raided houses by breaking down doors and throwing canisters of tear gas through windows; police arrested approximately 20 persons during the raids, and there were reports that some protestors and police were injured (see Sections 1.c. and 2.b.). Police also arrested worshippers in a mosque (see Sections 1.d. and 2.c.).

Bans on alcohol and immodest dress are enforced sporadically, usually during religious months, such as Ramadan. Alcohol can be imported and sold with a permit from the Government.

In October several hundred Comorian illegal immigrants were evicted from their homes and places of employment after the local Government in Mayotte announced new penalties against persons who housed or employed illegal immigrants (see Section 2.d.).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution does not provide specifically for freedom of the press, and on at least one occasion authorities infringed on this right. In August former M.P. Cheik Ali Bacar Kassim, who also owns the independent radio station Radio Tropique and is a well-known opposition figure, was arrested for allegedly plotting to overthrow the Azali Government (see Sections 1.d. and 1.e.). The new constitution approved in August, provides for freedom of the press; however, it was not implemented during the year.

There are two independent newspapers that publish regularly. These newspapers exist side-by-side with the semiofficial weekly Al-Watwan. Some of the independent newspapers criticized the Government freely.

The government-controlled radio station, Radio Comoros, was the only national radio station until the opposition radio station Radio Tropique resumed operations in June 1999. In August Radio Tropique stopped broadcasting news for a week to protest the arrest of its owner, Cheik Ali Bacar Kassim. In addition there are at least 10 regional and local stations, some of which are openly critical of the Government. Residents also receive broadcasts from Mayotte Radio, as well as from French television, without government interference. A national television station is under construction with assistance from the Government of the People's Republic of China. There are several private local television stations, and satellite antennas are popular. Amateur radio licenses have been issued without hindrance in the past.

Foreign newspapers are available, as are books from abroad. Internet service was introduced in 1998.

In August 1999, an independent radio station on Anjouan, Radio Ushababi, which was opposed to the independence movement, reportedly was forced to cease broadcasting after being harassed by police and threatened on several occasions by a group of separatist militiamen. In November the station resumed broadcasting.

The Government respects academic freedom. There is no university, but secondary students and teachers spoke freely and criticized the Government openly. Strikes by teachers and students resulted in periodic school closures.

b. Freedom of Peaceful Assembly and Association

The Constitution does not provide specifically for freedom of assembly and association, and on at least one occasion the Government restricted this right in practice. The new constitution, approved in August, provides for freedom of assembly; however, it was not implemented by year's end.

On October 13, a general strike was held in the capital of Moroni to protest the rising cost of fuel. Police and protestors violently clashed after the demonstrators reportedly blocked roads with stones and burning tires. The protest began after an earlier demonstration by women in Mtsangani district was held to protest the military Government. There were reports that police raided numerous homes, disrupted persons in a mosque during prayers, and arrested persons during the incident (see Sections 1.d., 1.f., and 2.c.). Two policemen and several protestors reportedly were injured, and some protestors reportedly were arrested. There were also reports that security forces used tear gas to disperse protesters who were marching to the OAU offices. Police briefly detained some of the protestors who were marching to the OAU offices. There were reports that some protestors and police officers were injured.

Between August 28 and 31 on Anjouan, separatist authorities clashed violently with opposition protestors who were demonstrating against the Fomboni Declaration of National Unity. Separatist authorities arrested as many as 100 of the protestors, some of whom reportedly were tortured and raped while in custody. (see sections 1.c. and 1.d.).

The Constitution does not provide specifically for freedom of association; however, the Government generally respects this right in practice. The new constitution, approved in August, provides for freedom of association; however, it was not implemented by year's end.

c. Freedom of Religion

The Constitution does not prohibit discrimination based on religion or religious belief specifically, and authorities infringed on freedom of religion. An overwhelming majority of the population is Sunni Muslim, and authorities restricted the right of Christians to practice their faith. Police regularly threatened and sometimes detained practicing Christians. In previous years, the authorities held those detained for a few days and often attempted to convert them to Islam forcibly; however, there were no reports of such actions during the year. In October 1999, two citizens were arrested, tried, and convicted of "anti-Islamic activity" in part because they possessed Christian books and audiovisual material. One of the citizens was

sentenced to 18 months in prison, while the other was sentenced to 4 months. Although in previous years, local government officials attempted to force Christians to attend services at mosques against their will, there were no reports of such incidents during the year. The Fombani Declaration that was signed by Azali and the Anjouan separatist leader in August included an agreement to make Islam the national religion. The constitution, approved in August, provides for equality of citizens under the law regardless of religion, belief, or ideology; however, it was not implemented by year's end.

During protests in Moroni on October 13, there were reports that police arrested persons inside a mosque while they were praying (see Section 1.f. and 2.b.).

There are two Roman Catholic churches and one Protestant church. However, prior to the April 1999 coup, the former military Government restricted the use of these three churches to noncitizens. There was no information available as to whether the new military Government continued this practice. Many Christians practice their faith in private residences. The Government permitted Christian missionaries to work in local hospitals and schools, but did not permit them to proselytize.

An Anjouanais Christian estimated that approximately 50 Christians, both men and women, have been detained by the embargoes during the last 18 months. In April 1999, embargoes on Anjouan arrested, beat, and detained three local Christians for a day. Some community authorities on Anjouan banned Christians from attending any community events and banned Christian burials in a local cemetery.

Bans on alcohol and immodest dress are enforced sporadically, usually during religious months, such as Ramadan. Alcohol can be imported and sold with a permit from the Government.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution does not specifically provide for these rights and the military Government restricts these rights in practice. The new constitution, approved in August, provides for these rights; however, it was not implemented by year's end.

In February in response to a call by the OAU, the Azali Government imposed partial sanctions on Anjouan for its failure to sign the Antananarivo Accords by the February 1 deadline. These sanctions included travel and financial restrictions on Anjouan's leaders. In March broader sanctions were imposed on Anjouan, including restrictions on all telecommunications, air, and sea links, on oil and petroleum products, and on the non-recognition of travel documents and passports. Following the signing of the Fombani Declaration in August, the Azali Government lifted the embargo unilaterally, permitting travel between Grande Comore and Anjouan. However, the embargo continued to be enforced by other nations.

There were reports during the year that persons fled Grand Comore and Anjouan for Mayotte; many of these persons reportedly drowned when they attempted to reach Mayotte on rafts or by swimming.

Comorian illegal immigrants in Mayotte are sometimes harassed by citizens of Mayotte. For example, in October several hundred Comorian illegal immigrants were evicted from their homes and places of employment after the local government in Mayotte announced new penalties against persons who housed or employed illegal immigrants.

The Government has not formulated a policy regarding refugees, asylees, or first asylum. During the 1990's, refugees from central Africa fled to the country. Some have received asylum in other countries; approximately 10 of these refugees remained in the country, and they were awaiting placement by the UNHCR in other countries at year's end.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

The Constitution does not provide for the right of citizens to change their government specifically, and in practice citizens do not have this right. The Constitution states that national sovereignty belongs to the nation's citizens who may exercise it through referendums; however, the Government had not scheduled a referendum by year's end.

According to the Constitution, the Head of State is appointed by the national army and has legislative power, which he then delegates to the Prime Minister and the Council of State. All laws proposed by the Council must be approved by the Head of State. In December 1999, in response to international criticism, Azali appointed a civilian Prime Minister, Bianrifi Tarmidi; however, Azali remains the Head of State and army Commander in Chief.

In March dissident political and army elements attempted a coup against Azali. This coup was suppressed, and the leaders of the coup were detained. In November one of the detained leaders escaped from prison, and the other leader remained in detention at year's end. The Government had not filed charges against the coup leaders by year's end.

In August Azali organized a national congress in response to pressure from his political supporters to restore civilian rule. Opposition parties boycotted the National Congress, but pro-Azali parties participated. The Congress agreed on a constitution in which Azali would remain Head of State, but daily government administration would be handled by the civilian Prime Minister and the Council of State, which would act as both a legislature and constituent assembly. The constitution was approved the National Congress in August, but it was not implemented by year's end.

On August 26, the Fomboni Declaration was signed by Azali and separatist leader Abeid. The declaration was an agreement to create a "new Comorian entity," in which the islands would share a common policy on religion, nationality, currency, foreign relations, and defense. In November a Tripartite Commission, composed of representatives from Grande Comore, Moheli, and Anjouan, was inaugurated and charged with developing a new constitution based on the Fomboni Declaration--an agreement between the Government and Anjouan--and the constitution that was articulated by the National Congress in August. The opposition parties initially refused to participate in the Tripartite Commission, but in December they met with the Azali Government. By year's end, the OAU was mediating negotiations between the Government and the on the provisions of the new constitution and a timetable for elections in 2001; however, it remained unclear whether the representatives from Anjouan would participate in or accept any agreement resulting from the negotiations. Although the OAU had initially maintained the position that the OAU-brokered Antananarivo Accord was the only viable option to reunify the islands, in December the OAU stated that it would accept an agreement that maintained the territorial integrity of the country and that provided for a democratic constitutional government. On December 12, Azali named a new civilian Prime Minister, Hamada Madi, and formed a new civilian Cabinet, which is composed of Azali supporters.

There were no bans in effect on political parties, which continued openly to criticize the Government without penalty. There are 21 political parties in the country; 5 parties represent the Azali Government and 16 parties represent the opposition.

Village chiefs and Muslim religious leaders tend to dominate local politics. Traditional social, religious, and economic institutions also affect the country's political life in important ways.

Although women have the right to vote and to run for office, they are underrepresented severely in national politics and government. At least three women hold senior government positions; one is the Minister for National Education; one is the President of the Tribunal of First Instance, and the third is the General Secretary of the State Council, which advises the Cabinet.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The military Government did not prevent the operation of human rights nongovernmental organizations (NGO's), and a number of NGO's operated in the country. However, the Comoros Human Rights Association, established in 1990, was on the verge of disintegration due to a lack of funds, and it was inactive during the year.

The military Government cooperated with international NGO's, and a few international NGO's operated in the country.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not prohibit discrimination based on these factors specifically, but only states that the judiciary is the guardian of individual liberties. There is discrimination against women, and local communities discriminate against and harass Christians. The new constitution, approved in August, provides for equality under the law to all citizens regardless of sex, origin, race, religion, belief, or ideology; however, it was not implemented by year's end.

Women

Violence against women occurs, but medical authorities, the police, and women's groups believed that it was rare. In theory a woman could seek protection through the courts in the case of violence, but the problem is addressed most often within the extended family or at the village level.

Men have the dominant role in society. A matriarchal African tradition affords women some rights, especially in terms of landholding. Societal discrimination against women is most apparent in rural areas where women have onerous farming and childrearing duties, with fewer opportunities for education and wage employment. In contrast an improvement in the status of women was most evident in the major towns, where growing numbers of women are in the labor force and generally earn wages comparable to those of men engaged in similar work; however, few women hold positions of responsibility in business. While legal discrimination exists in some areas, in general inheritance and property rights do not disfavor women. For example, the house that the father of the bride traditionally provides to the couple at the time of their marriage remains her property in the event of divorce.

Children

The Government has not taken any specific action to protect or promote children's welfare. Education is compulsory until the age of 10; however, attendance is not enforced. An estimated 60 percent of children attended primary school, while only 34 percent attending secondary school. Fifty-five percent of boys attended school, and 45 percent of girls attended school. Population pressure and poverty forced some families to place their children in the homes of others. These children, often as young as 7 years of age, typically worked long hours as domestic servants in exchange for food and shelter (see Section 6.c.). Legal provisions that address the rights and welfare of children were not enforced because of a lack of inspectors.

Child prostitution and child pornography are criminalized under the law. Unmarried children under the age of 13 are considered minors, and they are legally protected from sexual exploitation, prostitution, and pornography.

Female genital mutilation, which is widely condemned by international health experts as damaging to both physical and psychological health, generally is not practiced. Child abuse appears to be rare.

People with Disabilities

There is no evidence of widespread discrimination against the disabled in the provision of education or other services. There are no laws concerning accessibility to public buildings or services for persons with disabilities.

Religious Minorities

There is widespread societal discrimination against Christians in all sectors of life. Attempts have been made to isolate Christians from village life. In September and October 1999, on Anjouan, a religious leader started an unofficial campaign against Christians. Committees were formed in many villages to harass Christians, and lists of names of suspected Christians were circulated. Anti-Christian rhetoric was broadcast on the radio. This campaign resulted in threats, but there were no reports of violence. Christians faced insults and threats of violence from members of their communities. Christians have been harassed by mobs in front of mosques and called in for questioning by religious authorities. In some instances, families forced Christian members out of their homes or threatened them with a loss of financial support. Some Christians have had their Bibles taken by family members. Local government officials, religious authorities, and family members have attempted to force Christians to attend services at mosques against their will.

Islamic fundamentalism is growing in popularity as more students return to the country after studying Islamic subjects in foreign countries.

In 1999 community members and authorities in Lingoni, Anjouan, banned Christians from attending any community events, and in Mremeni, Anjouan, they banned Christian burials in the local cemetery.

Section 6 Worker Rights

a. The Right of Association

The Constitution does not provide for the right to unionize; however, the Government has not prevented industries from unionizing. Farming on small land holdings, subsistence fishing, and petty commerce make up the daily activity of most of the population. The wage labor force is small, and numbers less than 7,000 including government employees, and less than 2,000 excluding them. Teachers, civil servants, and dockworkers are unionized. Unions are independent of the Government. The Constitution does not provide for the right to strike; however, the right to strike has been exercised freely by public sector workers. The new constitution, approved in August, provides for the right to strike; however, it was not implemented by year's end.

Government workers and teachers held strikes intermittently during the year. Teachers and hospital workers strike intermittently, mostly because they often are not paid for months at a time (see Sections 1.e. and 2.a.). In August, despite regulations that prevent the removal of judges, Colonel Azali transferred to other duties nine judges who had initiated a strike from mid-June to early August that called for judicial reform and regular payment of salaries. There are no laws protecting strikers from retribution, but there were no known instances of retribution.

There are no restrictions on unions joining federations or affiliating with international bodies; however, none are known to do so.

b. The Right to Organize and Bargain Collectively

Unions have the right to bargain collectively, and strikes are legal. Wages are set by employers in the small private sector and by the Government, especially the Ministries of Finance and Labor, in the larger public sector. The Labor Code, which is rarely enforced, does not include a system for resolving labor disputes, and it does not prohibit antiunion discrimination by employers.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution does not prohibit forced or bonded labor, but it generally is not practiced; however, some families place their children in the homes of others where they work long hours in exchange for food or shelter (see Section 5).

d. Status of Child Labor Practices and Minimum Age for Employment

The Labor Code defines the minimum age for employment as 15 years of age. The Ministry of Labor has few resources to enforce this provision; however, except for domestic work, child labor is not a problem due to the general lack of wage employment opportunities. Children generally help with the work of their families in the subsistence farming and fishing sectors (see Section 5).

The law does not prohibit forced or bonded labor, and there were some instances of forced or bonded labor by children (see Section 5 and 6.c.).

e. Acceptable Conditions of Work

There is no minimum wage. The Government often pays workers late or fails to pay them at all; during the year, government workers received wages through August.

The Labor Code specifies 1 day off per week plus 1 month of paid vacation per year, but the Government has not set a standard workweek.

There are no safety or health standards for the minuscule manufacturing sector.

f. Trafficking in Persons

The law does not prohibit trafficking in persons; however, there were no reports that persons were trafficked to, from, within, or through the country.

[End.]

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